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Translation Decisions

HOW I THINK

FRONT MATTER Translation is, in the end, a sequence of decisions.

Most of them are never seen. A clause is rendered so it still holds after the law around it changes. A string is cut to fit a character limit without losing what it permits or forbids. A phrase crosses into another language and arrives sounding as if it had never left. Good judgment erases its own evidence.

This book exists to put that evidence back.

Each case study that follows records one decision: the context that made it necessary, the source text, an initial version, the version delivered, and a short note on why one was chosen over the other. Nothing here is theory. Each page is a single judgment, made once, under a real constraint.

Read it that way.

Case Study 01

The Word That Survives the Statute

LEGAL

LQA

THE DECISION

Whether the legally correct translation was also the legally durable one.

CONTEXT

The clause appears in Microsoft MakeCode's software license terms, localized into Brazilian Portuguese through Crowdin. During review, the Portuguese field still contained the French version of the clause.

SOURCE

"...les réclamations au titre de violation de contrat ou de garantie, ou au titre de responsabilité stricte, de négligence ou d'une autre faute dans la limite autorisée par la loi en vigueur."

INITIAL VERSION

The Portuguese field held the clause above, unchanged — French text standing in place of a translation that had not yet been made.

FINAL VERSION

"...reclamações por violação de contrato, garantia, responsabilidade objetiva, negligência ou outro ato ilícito, até o limite permitido pela lei aplicável."

EDITORIAL NOTE

A string in the wrong language is not a typographical error. It indicates that a translation step was skipped somewhere in the pipeline, and that the platform shipped believing the step had occurred. Catching it required checking the target language against itself, not against the source.

Two further decisions followed correction.

“Responsabilidade estrita” is a literal rendering of “strict liability”; Brazilian civil law already has a term for the concept — “responsabilidade objetiva” — and the literal version, while comprehensible, is not the one a Brazilian court or contract would use. “Lei vigente” describes the law currently in force; “lei aplicável” describes whichever law governs the clause, including after the current one is amended or replaced. A limitation-of-liability clause is written to outlast the statute it cites, which is what made the second term the only one that kept the clause's meaning intact over time.

Both decisions preserve the legal effect of the clause, not merely its wording.

Case Study 02

Legal Translation: Civil Procedure

LEGAL

THE DECISION

Whether functional equivalence outweighed literal institutional terminology.

CONTEXT

The clause is an excerpt from a civil procedure text governing asset attachment during debt execution under the Brazilian Code of Civil Procedure, translated for an English-speaking audience unfamiliar with Brazilian procedural terminology.

SOURCE

"Se o devedor citado não efetuar o pagamento, o oficial de justiça procederá de imediato à penhora e avaliação de bens, lavrando o respectivo auto de penhora e, na mesma oportunidade, intimando o executado dos referidos atos."

INITIAL VERSION

"If the summoned debtor does not make payment, the justice official will immediately proceed with the seizure and evaluation of assets, drawing up the respective seizure record and, at the same time, notifying the debtor of said acts."

FINAL VERSION

"If the served debtor fails to make payment, the bailiff shall immediately proceed with the attachment and appraisal of assets, drafting the respective return of service and, at the same opportunity, serving notice of such acts upon the judgment debtor."

EDITORIAL NOTE

One principle governed two terminology decisions in this clause.

“Oficial de justiça” has no single-word equivalent in English procedural law; “justice official” is accurate but foreign to how English-language legal documents actually speak.

“Bailiff” carries the same function — an officer of the court empowered to enforce judgments — inside vocabulary the target reader already trusts. That principle also governs “executado,” rendered as “judgment debtor” rather than simply “debtor”: the term marks a specific procedural status, one against whom judgment has already been entered, which “debtor” alone does not convey.

Neither decision domesticates the procedure. Both preserve its legal function through the terminology of the target legal system.

03

Case Study 03

Precision Under a Character Budget

LEGAL

LOCALIZATION

MTPE

THE DECISION

Whether a legal restriction could lose characters without losing what it prohibits.

CONTEXT

The clause is a software-use restriction within Microsoft MakeCode's license terms, localized into Brazilian Portuguese through Crowdin, subject to a fixed character limit imposed by the platform's string field.

SOURCE

"...reverse engineer, decompile or disassemble the software, or otherwise attempt to derive the source code for the software, except and only to the extent required by third party licensing terms governing use of certain open source components that may be included with the software;"

INITIAL VERSION

"...fazer engenharia reversa, descompilar ou desmontar o software, ou de outra forma tentar obter o código-fonte do software, exceto e somente na medida exigida pelo licenciamento de terceiros que regem o uso de determinados componentes de código aberto que podem estar incluídos no software;"

FINAL VERSION

"...fazer engenharia reversa, descompilar ou desmontar o software ou, de outra forma, tentar obter o código-fonte do software, exceto e somente na medida exigida pelo licenciamento de terceiros que regem o uso de determinados componentes de código aberto que podem ser incluídos no software;"

03

LEGAL
LOCALIZATION
MTPE

EDITORIAL NOTE

The initial version exceeded the field's character allowance. A character limit does not ask a translator to say less. It asks which words are load-bearing and which are not.

“Podem estar incluídos” and “podem ser incluídos” both mean “may be included”; the second is shorter while preserving exactly the same legal scope, which made it the correct place to cut rather than the three enumerated restrictions themselves — reverse engineering, decompiling, disassembling — none of which could be shortened, merged, or dropped without narrowing what the clause actually prohibits.

The character budget was met by compressing where nothing was lost, not where shortening was easiest.

04

Case Study 04

Consistency Across a Fictional Register

LOCALIZATION

THE DECISION

Whether a recurring catchphrase should be translated for local fluency or fixed as a marker of identity.

CONTEXT

The dialogue belongs to a recurring character in a game localized into Brazilian Portuguese through a community-reviewed Crowdin project. One word — “super” — recurs across many of the character's lines, attached to a different noun or adjective each time.

SOURCE

“Trying to take something from me? That's a super waste of time!”

INITIAL VERSION

“Tentando tirar algo de mim? Isso é uma perda de tempo e tanto!”

FINAL VERSION

“Tentando tirar algo de mim? Isso é uma super perda de tempo!”

EDITORIAL NOTE

Translated on its own, “super” attached to an unrelated noun is ordinary informal emphasis, and can be rendered fluently in any number of ways. That is the risk: a line translated for its own sake, without reference to the character's other lines across the script, will produce a different fluent phrase each time — and the marker disappears one small, reasonable choice at a time.

The decision was to keep “super” untranslated and grammatically unintegrated in every instance, rather than absorbed into a natural Portuguese equivalent. The word sits slightly apart from the sentence around it deliberately, because it is not functioning as an intensifier — it is functioning as a signature.

Consistency of an identifying marker across a script preserves character identity better than local fluency achieved in isolation.

Case Study 05

Stylistic Balance Under a Persuasive Register

EDITORIAL

THE DECISION

Whether a technical material specification could be translated with the same precision as the persuasive copy surrounding it, without either register weakening the other.

CONTEXT

The text is a luxury eyewear collection description combining aspirational marketing language with embedded technical material specifications, translated for a Brazilian Portuguese retail audience.

SOURCE

"The superior materials that shape the frames reflect XXX's uniqueness: from eco-friendly Italian bio-acetate derived from cotton flowers and wood fibers to the bio-compatible titanium and beta-titanium, they are the result of the selection of the best natural materials available in the world."

INITIAL VERSION

"Os materiais superiores que moldam as armações refletem a singularidade da XXX: desde o bio-acetato italiano ecológico derivado de flores de algodão e fibras de madeira até o titânio e beta-titânio biocompatíveis, eles são o resultado da seleção dos melhores materiais naturais disponíveis no mundo."

FINAL VERSION

"Os materiais superiores que compõem as armações refletem a exclusividade da XXX: desde o bio-acetato italiano ecologicamente correto, derivado de fibras de algodão e madeira, até o titânio e o beta-titânio biocompatíveis, eles são o resultado da seleção dos melhores materiais naturais disponíveis no mundo."

Client name withheld for confidentiality.

EDITORIAL NOTE

One principle governed both revisions: persuasive language remained credible only insofar as it stayed anchored in the technical specificity of the product itself.

“Ecológico” is accurate and common in Brazilian Portuguese retail copy, but it reads as a generic marketing qualifier — the same word used for unrelated products with no material claim behind it. Although longer, “ecologicamente correto” states a specific, defensible claim about sourcing, which is what the source text is actually asserting. The same principle governs “singularidade” against “exclusividade”: both mean roughly “uniqueness,” but “exclusividade” carries the connotation luxury retail language expects in Portuguese, where “singularidade” leans philosophical rather than commercial.

Neither revision increases persuasion. Both ensure that the persuasion remains supported by the technical claims it makes.

Case Study 06

Precision Without Persuasion

EDITORIAL

THE DECISION

Whether a technical specification, with no persuasive register to balance, still required judgment beyond correct terminology.

CONTEXT

The text is a specification sheet for professional audio equipment, listing input configurations, internal effects, and hardware features, translated for a Brazilian Portuguese technical audience.

SOURCE

"A USB port for the internal two-track player and recorder, MIDI ports and footswitch input provide maximum flexibility."

INITIAL VERSION

"Uma porta USB para o player e gravador interno de duas faixas, portas MIDI e entrada para footswitch fornecem flexibilidade máxima."

FINAL VERSION

"Uma porta USB para o reproduutor e gravador interno de duas pistas, portas MIDI e uma entrada para footswitch (pedal de acionamento) oferecem máxima flexibilidade."

EDITORIAL NOTE

A specification sheet has no rhetorical register to protect, which makes it easy to assume the translation is a matter of vocabulary alone. It is not. "Player" and "faixas" are common, borrowed usage in Brazilian Portuguese audio contexts, but "reprodutor" and "pistas" are the terms used in the manufacturer-facing technical literature this document belongs to — the register a professional buyer or technician expects, rather than the register of a consumer product listing. "Footswitch" was kept, since it is the term the target user already searches for, with "(pedal de acionamento)" added once as clarification rather than replacement.

Each preserves the document's function as a technical reference a professional reader can act on without ambiguity.

Case Study 07

Preserving a Voice Across Languages

LITERARY

THE DECISION

Whether a hyperbolic, retrospective comic voice in the source could survive translation into English's stricter grammatical logic for recounting a hypothetical past event.

CONTEXT

The text is an excerpt from a short story recounting a childhood memory, translated from Brazilian Portuguese into English for international publication, at the author's direct review.

SOURCE

"Criávamos tanta epinefrina que, se sucumbíssemos após a taquicardia, os anjos perderiam o juízo para nos ajeitar antes que entrássemos no Céu."

INITIAL VERSION

"We produced so much epinephrine that, if we succumbed after the tachycardia, the angels would lose their mind to fix us up before we entered Heaven."

FINAL VERSION

"We created so much epinephrine that, if we had succumbed after the tachycardia, the angels would have lost their minds trying to fix us up before we entered Heaven."

EDITORIAL NOTE

"Perderiam o juízo" is comic exaggeration in the source — angels driven to distraction by the effort of smuggling reckless children into Heaven — and the initial version keeps the image but loses the tense logic that makes it land as a remembered near-miss rather than a general joke. The Portuguese imperfect subjunctive, "se sucumbíssemos," frames the danger as a specific hypothetical already survived; English carries that same retrospective weight only through the conditional perfect, "would have lost," not the simple conditional.

The exaggeration itself was never in question. What required a decision was the grammar underneath it — the difference between a joke told in general terms and a joke told about one particular, remembered brush with disaster.

BACK MATTER These decisions were chosen for what they reveal, not for what they display.

Each held under a different constraint — a statute that might change, a character limit that could not, a voice that had to survive a move into a language its author never wrote in. None of them announce themselves on the page. That is what sound judgment looks like: a clause that holds, a voice that stays intact, a document that reads as though it had only ever existed in the language the reader is holding.

The decision, once made well, disappears. What remains is the work.

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